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Registration Number: NAIH/4788-6/2023
Subject: Application
Background: NAIH/2452/2022
Decision granting the application

****DECISION****

The National Authority for Data Protection and Freedom of Information (hereinafter: Authority) (...) (hereinafter: Applicant) has submitted an application against Igazi Társ Kft. (registered office: 1055 Budapest, Falk Miksa utca 4., tax number: 23147867-2-41, company registration number: 01-09-955189, represented by: Zsolt Morvai, managing director, hereinafter: Respondent) regarding the data processing conducted by the Almássy Éva Társközvetítő Iroda¹ operated by the Respondent in the data protection authority procedure initiated by the Applicant.

The Authority

grants the Applicant's request
and makes the following decisions:

1. The Authority finds the Respondent in violation based on the Applicant's request, as it has infringed upon the protection of natural persons with regard to the processing of personal data and the free movement of such data, as well as the repeal of Directive 95/46/EC, under Regulation (EU) 2016/679 (hereinafter: "GDPR" or "General Data Protection Regulation")
 - 1.1. Article 13 by failing to provide the Applicant with appropriate information regarding data processing;
 - 1.2. Article 12(1) by providing information that was not transparent and easily accessible, thereby failing to comply with the principle of accountability as stipulated in Article 5(2) of the GDPR;
 - 1.3. Article 9(2) by lacking a legal basis for the processing and transfer of special data (religion).
2. The Authority orders the Respondent ex officio to
 - 2.1. prepare and publish on its websites the data processing information regarding its matchmaking services in accordance with Article 12(1) and Article 13 of the GDPR;
 - 2.2. ensure the consistency of the prepared data processing information and other customer information documents (especially the contract, forms, and content available on its websites);
 - 2.3. ensure the legal conditions for the processing of special data or cease such processing.

The Respondent must provide written evidence of compliance with the measures outlined in points 2.1-2.3 above within 30 days from the date this decision becomes final, along with copies of supporting evidence and a presentation of its actions, referencing the above registration number.

In the event of non-compliance with the obligations set forth in points 2.1-2.3 above, the Authority will order the enforcement of the decision.

¹ In the Applicant's contract: "Igazyöngy Elit Exkluzív Társközvetítő Iroda," according to the Respondent's statement, following the name change of the office: "Almássy Éva Társközvetítő Iroda."
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The Authority publishes the subject decision in accordance with Section 61(2)(c) of Act CXII of 2011 on the Right to Informational Self-Determination and Freedom of Information (hereinafter: Infotv.), making the data of the Applicant accessible.

There is no administrative remedy against this decision, but it can be challenged in an administrative lawsuit by submitting a statement of claim addressed to the Metropolitan Court within 30 days from the communication. The statement of claim must be submitted electronically to the Authority, which will forward it along with the case documents to the court. A request for a hearing must be indicated in the statement of claim. For those not fully exempt from personal fees, the administrative court fee is HUF 30,000, and the case is subject to the fee recording right. Legal representation is mandatory in proceedings before the Metropolitan Court.

REASONING

I. The application and the course of the procedure

I.1. Application

(1) The Applicant stated in the application received by the Authority on February 1, 2022, that they entered into a service contract with the Respondent on June 8, 2019, under which the Applicant commissioned the Respondent to search for and mediate a partner with the characteristics described, taking into account the needs of the potential partners (contract Section A/1).

(2) According to the Applicant, as part of the contract conclusion process, a form was filled out according to Annex 1 of the contract, which contained criteria regarding the Applicant's identity and the characteristics of the partner sought by the Applicant. The Applicant claims that it was recorded during the completion of this form that a person no more than 10 years older than them could be mediated. The Applicant asserts that a copy of the completed annex was made, which remained with the Respondent.

(3) The Applicant claims that at the time of concluding the contract, they clearly expressed to the Respondent their intention to use the mediation service while maintaining their anonymity, to which the Respondent verbally promised to comply. The Applicant wished to emphasize in this regard that, in their opinion, this is also evident from the informational text on the Respondent's website (http://www.exkluzivtarskereso.hu/magyar/oldalok/diplomas_tarskereso/), as the Respondent explicitly refers to the fact that discretion is a priority in their service.

(4) The Applicant claims that on June 17, 2019, a man contacted them who did not meet the criteria provided by the Applicant, particularly because he was 17 years older than the Applicant. The Applicant stated that the man claimed that the Respondent had sent him the Applicant's profile. At the Applicant's request, the man also forwarded the received profile to the Applicant. According to the Applicant, all personal and sensitive data that had previously been communicated to the Respondent on the document according to Annex 1 of the contract appeared on the profile provided by the man.

2 The form for initiating administrative proceedings is called NAIH_K01: NAIH_K01 form (September 16, 2019). The form can be filled out using the general form-filling program (ÁNYK program). The form is available at the following link: <https://www.naih.hu/kozig-hatarozat-birosagi-felulvizsgalata>

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The data transfer, according to the Applicant's position, occurred without prior notification and without their consent.

(5) The Applicant stated in their application that they subsequently communicated their complaints to the Respondent, but since the correspondence did not yield results, they terminated the contract and later turned to the Conciliation Board and then to the Metropolitan Court.

(6) According to the Applicant's assertion, in the litigation, the Respondent stated in their counterclaim that they sent the Applicant's data sheet to a total of three individuals. In this regard, the Applicant wanted to emphasize that they did not receive prior notification regarding the data transfer in any case, did not consent to it, and highlighted that the transmitted data included special data. The Applicant further stated that, in their opinion, data transfer also occurred after the termination of the contract on June 28, 2019, specifically on July 1, 2019.

(7) The Applicant submitted to the Authority, in the form of copies of documents, the referenced mandate contract, the data sheet which, according to their claim, was sent to them by an unknown man at their request following contact with them, their correspondence with the Respondent regarding the matter, the Respondent's substantive counterclaim submitted in the litigation with case number (...) dated September 30, 2020, and a copy of the minutes recorded in the litigation under case number (...).

(8) In addition to the above, the Applicant provided the Authority with the basic company data of the Respondent (company name, registered office, tax number, company registration number), as well as the URL of the following website of the Respondent and the Respondent's next email address: <http://tarskereso-iroda.hu>; igazitars2011@gmail.com.

(9) The Applicant further stated that there is no imprint on the Respondent's internet platforms and no other information from which it could be determined which company operates under the trade name "Almássy Éva Exkluzív Társkereső Iroda."

(10) The Applicant objected that the Respondent transmitted their personal data to third parties without their consent. The Applicant requested the Authority to determine that the Respondent's data processing activities violated the provisions of the GDPR, to hold the Respondent accountable for the unlawful practice, and to oblige them to align their data processing operations with the provisions of the GDPR.

I.2. Websites

(11) The Authority recorded certain documents accessible to anyone on the internet in its note with case number NAIH/2452-3/2022. In this regard, the Authority made the following findings:

(12) In the application submitted to the Authority, the Applicant indicated the URL of one of the Respondent's websites with the domain name <http://tarskereso-iroda.hu>, and also referred to the website http://www.exkluzivtarskereso.hu/magyar/oldalak/diplomas_tarskereso/ as the Respondent's homepage in their application.

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(13) According to a query conducted on the www.domain.hu website, the Applicant is the domain user of the <http://tarskereso-iroda.hu> domain. The website accessible under the <http://tarskereso-iroda.hu> domain contains the following three external links in the "társoldalak" menu (hereinafter collectively referred to as "Társoldalak"):

- exclusive dating (<http://www.exkluzivtarskereso.hu/>);
- Igazgyöngy dating agency (www.igazgyongyelit.hu);
- graduate dating (<http://www.tarskeresodiplomas.hu/>).

(14) According to queries conducted on the www.domain.hu website, the Applicant is the domain user of each of the domain names associated with the Társoldalak.

(15) At the time of recording the note, the data processing information relevant to the service was found in only one place among the <http://tarskereso-iroda.hu> website and the Társoldalak, specifically on one subpage of the <https://www.exkluzivtarskereso.hu> website; the date of the document, publication date, and temporal validity could not be determined. There was no imprint placed on any of the relevant websites.

(16) At the time of recording the note, several comments were readable on the websites, reporting on the effectiveness of Éva Almássy's personal involvement. The websites feature a photographic presentation of Éva Almássy, who, according to one of the entries, is "like the best friend who listens attentively and cares about their emotional life, not just about finding the right partner," and elsewhere it is stated that "Éva Almássy's expertise and innate ability guarantee that she understands the needs and expectations of those seeking partners."

I.3. The Applicant's Statement

(17) In its decision with file number NAIH/2452-4/2022, the Authority posed questions to the Applicant to clarify the facts, to which the Applicant summarized its response with file number NAIH/2452-6/2022 as follows:

(18) The Applicant stated that the purpose of its data processing is to fulfill its dating service. According to its claim, the data processed for this purpose has not been transferred to any other company, and only its employees have access to it. In this regard, the Applicant did not clarify the details outlined in point E/26 of the contract. It claims that it does not engage a data processor.

(19) In response to the Authority's question, the Applicant stated that "Éva Almássy does not actually participate in matchmaking and does not know the members' data." The Applicant did not make any further statements regarding Éva Almássy.

(20) In response to the Authority's question regarding the meaning of the text in the contract concerning the data of the Mandated Party, which states that the Applicant "contracts as the operator of the Igazgyöngy Elit Exkluzív Társközvetítő Iroda," the Applicant explained that the "Office" changed its name from Igazgyöngy Elit Exkluzív Társközvetítő Iroda to Almássy Éva Társközvetítő Iroda, with the owner and operator having always been and currently being the Applicant.

3 <https://info.domain.hu/webwhois/hu/domain/tarskereso-iroda.hu>

4 https://www.exkluzivtarskereso.hu/ma_files/adatkezelesi_tajekoztato.pdf

5 <http://www.tarskeresodiplomas.hu/>

6 https://www.exkluzivtarskereso.hu/magyar/oldalak/exkluziv_elit_tarskereso_iroda_tarskereses_buda_pest_tarskeresok/

7 The contract's point E/26: "The identity of potential data processors authorized to access the data, the recipients of personal data are the persons employed by the Mandated Party, who are direct colleagues of the Mandated Party, a person designated by the Mandated Party: the data protection officer acts as a data controller. Contact information (...)."

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(21) In response to the Authority's inquiry, the Respondent stated that the use of another intermediary office as per point D/20 of the contract was not utilized in the case of the Applicant; however, it did not detail which organizations these are, nor where it informed the Applicant about them and the conditions for their potential use.

(22) According to the Respondent's statement, it did not publish the Applicant's data on its website, as – although there is an option for this – the Applicant did not request it according to the statement made in the contract. (In the contract at point D/13, the printed text granting consent for this has been crossed out, and the crossing out was signed by the Applicant.)

(23) The Respondent stated that the Applicant registered in person with the Respondent on June 8, 2019. According to the Respondent's position, at that time, the Applicant was informed about the service and then filled out and signed the data sheet. The Respondent, according to its statement, electronically recorded the data from the data sheet ("entered it into the program") and then sent the electronically prepared data sheet to the Applicant's provided email address for review and approval. The Respondent claims that the Applicant approved the data sheet, as well as every modification made to the data sheet later at the Applicant's request, which the Respondent intended to substantiate with the content of the correspondences.

(24) The Authority requested the Respondent to present its data processing information valid during the period from June 8, 2019, to June 28, 2019, in addition to the current one. The Respondent submitted its data processing policy dated July 29, 2020, which it claims is available in paper form at its office for clients.

(25) The Respondent stated that it believes the Applicant's consent was the legal basis for its data processing. The Respondent did not comply with the Authority's request to clarify point E/30 of the contract. Regarding the legal bases, the Authority requested the Respondent's response to be broken down by data processing purposes, which the Respondent did not fulfill for either the existing or the

contractually defined period.

(26) The Authority called upon the Respondent to present the document on which the Respondent approved the transferable personal data as per point D/12 of the contract, as well as the consent statement regarding the transfer of these personal data, and to prove that the Applicant should have been aware of the fact of the transfer even before making the consent statement. In response, the Respondent stated that it believes the Applicant approved the data transfer in the contract and, in its opinion, accordingly corrected the data sheet as well. Additionally, the Respondent wished to point out that, in its view, the attached court ruling contains findings relevant to this matter in paragraphs [35] and [36].

(27) In response to the Authority's question regarding where the Respondent informed the Applicant about the purpose, legal basis, and circumstances of the processing of the data collected specifically in Annex 1 of the contract, the Respondent did not provide facts or submit evidence.

8 Point D/20 of the contract: "The Agent is entitled to use a cooperator (e.g., another intermediary office) solely for the successful performance of the service."

9 Point E/30 of the contract: "The legal basis for data processing is the consent of the data subject, Article 6(1)(a) and (b) of the GDPR, Section 5(1) of the Infotv., Section 169(2) of Act C of 2000 on Accounting, and Section 13/A(3) of Act CVIII of 2001 on certain issues of electronic commerce services and information society services (hereinafter: E-commerce Act)."

10 Point D/12 of the contract: "The Agent shall transmit the data approved by the Principal to potential partners until the Principal provides a different written instruction, however, regarding the data of those individuals who received the Principal's data for matchmaking purposes, the Agent may not provide information to the Principal according to data processing regulations."

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(28) The Applicant emphasized that due to the nature of its service, it cannot be performed confidentially; during matchmaking, clients are brought together based on "the data provided and approved by them."

(29) Regarding the confidentiality clause in point D/18 of the contract, the Applicant stated in response to the Authority's inquiry that it pertains to the statements made during a verbal conversation with the Applicant, to which the Applicant believes it has adhered to its confidentiality obligation.

(30) The Authority requested the Applicant to interpret the text in point D/12, which states that "the data of those individuals who received the Client's data for matchmaking purposes cannot be provided by the Agent to the Client according to data processing regulations." Based on the response given, "according to the classical procedure," male clients receive the data of female clients, but "typically, gentlemen do not consent in advance to the release of their data." According to the Applicant's statement, the Applicant did not request the Applicant to inform them about whom was matched.

(31) The Applicant believes that the data transfer was not unlawful, but the Applicant's goal was to recover the amount paid.

(32) The Applicant stated that it stores the collected data on an offline device that is password-protected and equipped with AES256 encryption. The device's password protection includes the deletion of the data after the fifth incorrect password entry.

(33) According to its claim, the Applicant deleted the Applicant's data as requested, including the data sheet, thus no further matchmaking occurred following the termination of the contract. The Applicant did not provide evidence to substantiate the fact of deletion and its date. According to its statement, as a result of the deletion operation, the data is not recoverable.

(34) The Applicant submitted to the Authority its correspondence with the Applicant, its data protection policy, and the judgment with case number (...) (which was a decision concluding a civil lawsuit initiated due to the violation of personality rights related to the contractual relationship between the Applicant and the Applicant).

I.4. Additional Evidence

(35) From the attached documents, the Authority made the following additional findings in the context of clarifying the facts:

I.4.1. Contract

(36) According to point A/2, the Applicant acts with due diligence but does not guarantee the occurrence of the result.

(37) According to point D/10, it does not assume responsibility for the effectiveness of matchmaking, finding a suitable partner, or the availability of a partner in the database that meets expectations.

(38) According to point D/11, the Applicant is obliged to act according to the instructions of the Applicant.

11 The confidentiality clause in point D/18 of the contract: "The Agent is bound by strict confidentiality obligations towards third parties during the agency relationship and for 3 years following its termination, in accordance with the relevant provisions of the Civil Code."

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(39) According to point D/12, the Respondent shall transmit the data approved by the Applicant to potential partners until receiving a different written instruction from the Applicant. However, the Respondent cannot provide information to the Applicant regarding the individuals who have received the Applicant's data for matchmaking purposes, based on data processing regulations.

(40) According to point D/13, the Respondent shall search for and identify individuals among the registered persons who best meet the Applicant's request as specified in point 1. The Applicant also consents to the inclusion of their photograph in the Applicant's registry, in addition to the characteristics listed in Annex 1.

(41) According to point D/18, the Respondent is bound by strict confidentiality obligations towards third parties.

(42) According to point D/19, there is an enhanced obligation of cooperation and information sharing between the parties. As part of this, the Applicant is required to confirm their intention to continue data transmission every three weeks. In the absence of such confirmation, the Respondent shall not provide new contact details to the Applicant until receiving feedback from the Applicant.

(43) According to point D/20, the Respondent may, if necessary, engage another matchmaking agency. ("The Agent is entitled to involve a collaborator (e.g., another matchmaking agency) solely for the successful performance of the service.")

(44) According to point D/21, the Respondent is obligated solely to matchmaking and is not responsible for the actual circumstances or the authenticity of the data of the matched partner candidates.

(45) According to point E/Data Processing, section E/23, the Respondent is the data controller. In the contract, the parties' data identifies the Agent as Igazgyöngy Elit Társközvetítő Iroda, of which the Respondent is the operator.

(46) According to point E/25, the purpose of data processing is to fulfill the matchmaking service specified in the contract, for which the Applicant provides "among others" their name, personal characteristics, data necessary for contact and communication, and data required for issuing a compliant invoice.

(47) According to point E/30, "the legal basis for data processing is the consent of the data subject, Article 6(1)(a) and (b) of the GDPR, Section 5(1) of the Infotv., Section 169(2) of Act C of 2000 on accounting, and Section 13/A(3) of Act CVIII of 2001 on certain issues related to electronic commerce services and information society services (hereinafter: E-commerce Act)."

(48) According to point E/31, the Respondent informs the Applicant that "data processing is based on

their consent," and the failure to provide data will result in the Respondent being unable to fulfill their contractual obligations.

I.4.2. Data Processing Policy

(49) The data processing policy dated July 29, 2020, explicitly names the Respondent as the data controller.

(50) According to the document, the Respondent manages the data "exclusively in the manner and to the extent for which they have received explicit consent from the data subject."

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According to the document, "the Data Subject [...] consents to the Data Controller's data processing as specified in the Data Processing Policy upon acceptance of the Policy."

(51) The purpose of data processing is presented here in such a way that the Applicant does not deviate from the purpose.

(52) The document identifies the legal bases according to Article 6(1)(a) and (b) of the GDPR, as well as Section 5(1) of the Infotv., without a breakdown by purpose, merely as a simple list.

(53) Among the processed data (point 8) are included, among others, the personal identification number, number of children, religion, marital status, smoking status, etc., but among the data listed here, there are also collective terms (e.g., internal characteristics) whose exact content is not clarified. In contrast, the list provided here is missing data such as existence, nationality, phone number, which are included among the data types appearing on the data sheet.

(54) The Applicant maintains its records based on the information provided here according to "master numbers." The document extends to what type of SSD the Applicant uses as a data security measure and what technical settings related to security purposes are applied.

(55) The document lists the questions regarding which clients must be informed at the time of contract conclusion; however, the content of this information cannot be discerned from here.

I.4.3. The judgment with case number (...)

(56) According to paragraph [8] of the judgment, the Applicant was referred to 3 men by the Respondent. The referral to the third party occurred on July 1, 2019.

(57) Based on paragraph [17] of the judgment, the Respondent detailed in the court proceedings how many times, at what times, and to whom the data sheet was sent for the purpose of matchmaking regarding the Applicant. In its view, the Applicant gave consent to the data transfer multiple times via email after the contract and verbal information.

(58) According to paragraph [18] of the judgment, the Applicant denied having received information regarding the transfer of the entire data sheet, contrary to the discretion, which was an explicit expectation and for which the Applicant received a verbal promise from the Respondent. Furthermore, it stated that the text of the contract also implies that it gave its consent for the registration of the data provided on the data sheet, not for its transfer.

(59) According to paragraph [15] of the judgment, the Applicant's expectation was that the Respondent would consult with them before specific referrals and would request individual consent for the data transfers, as the Applicant believed that the Respondent promised anonymous referrals.

(60) According to paragraphs [26]-[27] of the judgment, the court established regarding discretion that it cannot be substantiated what the clear meaning of it was between the parties. The request for the anonymous service referred to by the Applicant is not supported by evidence beyond the fact that it did not consent to the publication on the website.

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to it (and this provision of the Applicant has not been violated). The court accepted, based on the correspondence, the Applicant's assertion that on the data sheet, which by this time was no longer

available according to the substantive paragraph of the judgment, the Applicant made an age-restrictive provision. In the court's view, considering this latter circumstance, the transfer of data that disregarded the age difference request, that is, the transfer without consent, did not occur in accordance with the contract.

(61) In paragraphs [35]-[37] of the judgment, the court found that the Applicant was aware that the data provided by them was used by the Respondent to compile the data sheet that would be sent to potential candidates.

(62) In this regard, the court emphasized that according to Section 6:92(1) of the Civil Code, the party's secret reservation or hidden motive does not affect the validity of the contract. According to the court, the Applicant's position regarding the data transfer was merely an assumption, thus qualifying as a secret reservation, noting that certain statements made by the Applicant in the correspondence between the parties contradict this secret reservation (cf. certain excerpts from the email dated June 13, 2019). Furthermore, the court highlighted from the email dated June 27, 2019, that based on the statement contained therein, the Applicant only considered after the conclusion of the contract and the data transfer that the data transfer and the provision of their full name were disproportionate to them. In this context, the court also referred to point D/12 of the contract, which states that until the Applicant provides different instructions, the Respondent will transmit the data approved by the Applicant to potential partners with the Applicant's consent. Based on the above, the court found that, keeping in mind the position of PK. No. 12, it cannot be established otherwise than that the Applicant was aware that the document, which the Respondent would forward to the candidates, was compiled based on the personal data provided on the data sheet. In connection with the examination of the violation of personal rights, the court stated that, in its view, the Applicant expressly consented to the processing and transfer of the data provided by them in the contract and the relevant correspondence. The court also emphasized that it does not have the authority to examine the extent to which the Respondent's data processing regulations comply with the GDPR.

(63) In the statement given in response to the call contained in the decision with case number 4788-2/2023, the Applicant confirmed that the relevant court judgment became final on May 25, 2022.

I.4.4. Substantive objection submitted in the litigation with case number (...)

(64) Based on one of the statements made by the Respondent in the relevant document, the Respondent considers that it acted according to the instructions of the Applicant as per points D/12-13 of the contract and does not need to account for whom it sends the Applicant's data sheet.

I.4.5. Minutes recorded under case number (...)

12 The excerpts referred to by the court include: "the data sheet can still be used this way until then"; "perhaps they understand it more easily"; "cooking should be at the front because I really like that"; the Applicant's name was partially recognizable from the provided email address; they requested a modification of the text at the self-description to avoid confusion for the reader.

13 The excerpt highlighted by the Authority from the referenced email: "According to the contract [...]. Two important, questionable things arose in my mind regarding this [...]"; and "Actually, I should have asked the question before signing the contract [...]".

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(65) The Applicant stated, referring to point D/13 of the contract, that consent for registration can be derived from it, but consent for data transmission cannot.

(66) In this regard, the Respondent explained that the clear purpose of registration is matchmaking, therefore it is evident that the registered data will be used by the Respondent during the proposal process.

(67) According to the Applicant's statement, it was his assumption that the requested data would serve to better identify him and assist the Respondent's work; he did not think that the entire document would be transmitted along with his name and special (e.g., religious) data. His expectation was that data

transmission would only occur concerning the photograph and the introductory text.

(68) According to the statement made by the Applicant here, no data processing information was provided to him.

(69) According to the statement made by the Respondent here, after filling out the data sheet, gentlemen generally seek ladies, and there are clients who specifically request to be notified about the transmission of their data sheet so that they know who will be contacting them.

I.4.6. Correspondence

(70) The Authority established that from the Applicant's email dated June 11, 2019, it follows that he sent his photographs to the Respondent with the expectation that they would be transmitted to potential candidates. He also requested that the Respondent send him the data sheet so he could decide whether he wanted to make any modifications.

(71) In the data sheet sent in response on June 13, 2019, the photograph was included. Based on certain attachments of the correspondence, it can be established that later, at the request of the Applicant, additional photographs were also added to the Applicant's modified data sheet. In the confirmation email sent to the Applicant on June 24, 2019, the Respondent explicitly stated in this regard: "I attached a few of them to your data sheet."

(72) In the Applicant's email dated June 13, 2019, alongside the clarification of the email address, he made correction requests for better understanding (for example: "if possible, please put cooking at the top, because I really enjoy it"; "the data sheet can still be used like this"; "maybe it will be easier to understand").

(73) In the Applicant's email dated June 27, 2019 – following an unsolicited contact, as he claimed – he stated that although these issues should have been clarified before the contract was concluded, two concerns only arose at this stage: on the one hand, he feels it is disproportionate that all his data is received by candidates, about whom he cannot know anything, and on the other hand, he is not aware of how many people became acquainted with his data in the context of the proposal (whether fulfillment occurred). In relation to the latter, he stated, "it may be that you sent the data sheet to many people, but no one matched." In relation to the former, he requested a modification of his email address and name in such a way that only his first name would be recognizable.

14 The contract point D/13: "The Agent will search for and identify those individuals among the registered persons who best meet the Client's needs as specified in point 1. The Client also consents to the inclusion of his photograph in the Client's register, in addition to the characteristics listed in Appendix 1."

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(74) The Applicant initiated the termination of the contract in their email dated June 28, 2019. In this and subsequent letters, the Applicant indicated complaints related partly to the performance of the contract and partly to data processing. In the latter context, they objected that they did not receive a substantive response to their complaints, that data was transmitted to a person who did not meet the specified criteria ("my data sheet was sent to a person with an exclusionary criterion (age) contrary to my instructions"), that they had no information regarding further data transmissions, that the Respondent did not fulfill their obligation to cooperate and inform despite the confidential nature of the service, and that, in their opinion, the legality, fairness, transparency, data minimization, integrity, and confidentiality principles were not met in a manner that also violated the contract, and contrary to the Respondent's promise, the Applicant's anonymity was compromised.

(75) In their response dated July 2, 2019, the Respondent indicated that offers were made to 3 individuals who best matched the parameters provided by the Applicant. The Applicant noted in their response that they were aware that the provided parameters were intended for matchmaking purposes. The Respondent then requested the Applicant's confirmation for further offers. In the subsequent correspondence, the Respondent did not provide any additional information and

consistently responded to the Applicant's further complaint messages in the same manner.

(76) In their email dated July 18, 2019, the Applicant also complained that they were unable to contact any competent manager from the Respondent's side in any way, that the Respondent's employee did not inform them of their identity, and thus it was unclear to them who they were actually corresponding with.

(77) The Applicant sent their emails to the Respondent addressing (...) Tünde and Éva Almássy.

(78) Based on the attachments submitted to the Authority, the Respondent sent their emails to the Applicant from the email address "Almássy Éva ," signed "Éva and Tünde."

(79) The Respondent also submitted the emails sent to potential candidates, which included the Applicant's data sheet as an attachment. The sender's email address and the signature panel were structured exactly the same way in these emails.

I.5. The Authority's Procedural Competence and the Relation of the Current Authority Procedure to the Judicial Procedure Referenced by the Clients

(80) According to Article 57(1)(a) of the GDPR, it is the task of the national data protection authorities to monitor and enforce the application of the GDPR.

(81) According to Sections 38(2)-(2a) of the Infotv., the Authority's task is to monitor and facilitate the enforcement of the right to the protection of personal data, as well as the right to access public interest and publicly available data, and to promote the free flow of personal data within the European Union. The tasks and powers assigned to the supervisory authority in the General Data Protection Regulation are exercised by the Authority in accordance with the provisions of the General Data Protection Regulation and the Infotv. concerning entities under the jurisdiction of Hungary. The Authority's jurisdiction extends to the entire territory of the country.

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(82) The Authority took into account its own procedural competence and its relationship to the referenced judicial proceedings in evaluating the matter, including the preliminary ruling procedure conducted in connection with the decision numbered NAIH/2019/6245/6, in which the Court of Justice of the European Union delivered its judgment on January 12, 2023, in case C-132/21, which states the following:

(83) "In light of Article 47 of the Charter of Fundamental Rights of the European Union, Articles 77(1), 78(1), and 79(1) of the GDPR must be interpreted as follows: these provisions allow for the parallel and independent exercise of the remedies mentioned in Article 77(1) and Article 78(1) on the one hand, and the remedy mentioned in Article 79(1) on the other hand. It is the responsibility of the Member States to determine, in accordance with the principle of procedural autonomy, the detailed rules governing the relationship between these remedies in order to ensure the effectiveness of the protection of rights guaranteed by this Regulation, the consistent and uniform application of the provisions of this Regulation, and the right to an effective remedy before a tribunal as mentioned in Article 47 of the Charter."

(84) Based on the above, the Authority - particularly in relation to the findings of the paragraphs [35]-[37] of the judgment cited by the Applicant - wishes to emphasize that in the judicial proceedings, the Metropolitan Court evaluated the contract and its performance from a civil law perspective in a case concerning the infringement of personality rights. The subject of the court's proceedings was not the compliance of data processing with the GDPR.

(85) In the present proceedings, the Authority examined the compliance of data processing, particularly data transfer, with the GDPR at the request of the Applicant, in connection with the processing of their personal data, in accordance with Section 60(2) of the Infotv. and Article 77(1) of the GDPR.

(86) In this regard, the Authority considered the court documents submitted by the clients as evidence where they contained relevant information regarding the facts under examination in relation to the

subject matter of the present proceedings, but the findings made by the court in civil law matters do not affect the Authority's decision regarding the legality of data processing. The Authority took into account that the judgment of the Metropolitan Court (...) is final based on the evidence submitted by the Applicant.

(87) The Metropolitan Court and the Authority examined different issues, consequently making independent decisions on different matters, and the decisions made as a result of their proceedings can also be challenged in separate remedies.

II. Applicable Legislation

(88) For data processing falling under the scope of the GDPR, according to Section 2(2) of Act CXII of 2011 on the Right to Informational Self-Determination and on Freedom of Information (hereinafter: Infotv.), the General Data Protection Regulation shall be applied with the modifications specified therein.

(89) Based on Sections 60(1)-(2) of the Infotv., in order to ensure the enforcement of the right to the protection of personal data, the Authority shall initiate a data protection authority procedure at the request of the data subject and may also initiate a data protection authority procedure ex officio. The request for the initiation of a data protection authority procedure must be made in accordance with the general data protection...

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Article 77 (1) of the Regulation, as well as point b) of Section 22 of the Infotv., specifies the cases in which a complaint may be submitted.

(90) According to Article 77 (1) of the GDPR, without prejudice to other administrative or judicial remedies, every data subject has the right to lodge a complaint with a supervisory authority - particularly in the Member State of their habitual residence, workplace, or the place of the alleged infringement - if the data subject believes that the processing of personal data concerning them infringes this Regulation.

(91) In the absence of specific provisions in the General Data Protection Regulation, the provisions of Act CL of 2016 on the General Administrative Procedure (hereinafter: Ákr.) shall apply to the data protection authority procedure initiated by request, with the deviations specified in the Infotv.

(92) According to Section 35 (1) of the Ákr., a request is a statement submitted by the client in writing or in person, requesting the conduct of an administrative procedure or the decision of the authority in order to assert their rights or legitimate interests.

(93) According to Section 38 of the Ákr., the request shall be assessed according to its content, even if it does not correspond to the designation used by the client.

(94) According to point 1 of Article 4 of the GDPR, "personal data" means any information relating to an identified or identifiable natural person ("data subject"); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, number, location data, online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person.

(95) According to point 2 of Article 4 of the GDPR, "processing" means any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure, or destruction.

(96) According to point 7 of Article 4 of the GDPR, "data controller" means the natural or legal person, public authority, agency, or any other body which, alone or jointly with others, determines the purposes and means of the processing of personal data.

(97) According to Article 12 (1) of the GDPR:

The data controller shall take appropriate measures to provide the data subject with all information regarding the processing of personal data referred to in Articles 13 and 14, and all information referred to in Articles 15-22 and 34, in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, especially when addressing children. The information shall be provided in writing or by other means - including, where appropriate, by electronic means. Upon request of the data subject, oral information may also be provided, provided that the identity of the data subject has been verified by other means.

(98) According to Articles 13 (1)-(2) of the GDPR:

(1) Where personal data are collected from the data subject, the data controller shall provide the data subject with the following information at the time of obtaining the personal data:

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- a) the identity and contact details of the data controller and, if applicable, the representative of the data controller;
- b) the contact details of the data protection officer, if applicable;
- c) the purpose of the intended processing of personal data, as well as the legal basis for the processing;
- d) in the case of processing based on point (f) of Article 6(1), the legitimate interests of the data controller or a third party;
- e) where applicable, the recipients of the personal data or categories of recipients, if any;
- f) where applicable, the fact that the data controller intends to transfer personal data to a third country or an international organization, as well as the existence or absence of an adequacy decision by the Commission, or in the case of transfers referred to in Article 46, Article 47, or the second subparagraph of Article 49(1), the identification of appropriate and suitable safeguards, as well as references to the means of obtaining a copy of those safeguards or the availability thereof.

(2) In addition to the information referred to in paragraph (1), the data controller shall provide the data subject with the following additional information at the time of obtaining the personal data, in order to ensure fair and transparent processing:

- a) the duration for which the personal data will be stored, or if that is not possible, the criteria used to determine that duration;
- b) the data subject's right to request access to their personal data, to rectify it, to erase it, or to restrict its processing, and to object to the processing of such personal data, as well as the right to data portability;
- c) in the case of processing based on point (a) of Article 6(1) or point (a) of Article 9(2), the right to withdraw consent at any time, without affecting the lawfulness of processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the provision of personal data is based on a legal or contractual obligation or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data, as well as the possible consequences of failing to provide such data;
- f) the fact of automated decision-making as referred to in Article 22(1) and (4), including profiling, as well as at least in those cases, information about the logic involved and the significance and the expected consequences of such processing for the data subject.

(99) According to Article 5(2) of the GDPR, the data controller is responsible for compliance with paragraph (1) and must be able to demonstrate such compliance ("accountability").

(100) According to Article 6(1) of the GDPR:

The processing of personal data shall be lawful only if and to the extent that at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is a party, or for taking steps at the request of the data subject prior to entering into a contract;

- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary in order to protect the vital interests of the data subject or of another natural person;

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- e) the data processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the data processing is necessary for the purposes of legitimate interests pursued by the data controller or a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject, which require protection of personal data, especially if the data subject is a child.

The first subparagraph point f) shall not apply to data processing carried out by public authorities in the course of performing their tasks.

(101) According to Article 4(11) of the GDPR, "the data subject's consent" is the voluntary, specific, informed, and unambiguous indication of the data subject's wishes, by which the data subject signifies agreement to the processing of personal data relating to them, by a statement or by a clear affirmative action.

(102) According to Article 7 of the GDPR:

- (1) If the processing is based on consent, the data controller shall be able to demonstrate that the data subject has consented to the processing of their personal data.
- (2) If the data subject gives consent in the context of a written declaration which also relates to other matters, the request for consent shall be presented in a manner which is clearly distinguishable from those other matters, in an intelligible and easily accessible form, using clear and plain language. Any part of such a declaration that does not comply with this Regulation shall not be binding.
- (3) The data subject shall have the right to withdraw their consent at any time. The withdrawal of consent shall not affect the lawfulness of processing based on consent before its withdrawal. The data subject shall be informed thereof before giving consent. The withdrawal of consent shall be as easy as giving consent.
- (4) When assessing whether consent is freely given, account shall be taken, to the greatest extent possible, of whether, among other things, the performance of a contract, including the provision of a service, is conditional on consent to the processing of personal data that is not necessary for the performance of that contract.

(103) According to Article 9(1) and (2)(a) of the GDPR:

- (1) The processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, as well as the processing of genetic and biometric data for the purpose of uniquely identifying a natural person, health data, and personal data concerning a natural person's sex life or sexual orientation is prohibited.
- (2) Paragraph 1 shall not apply if:
 - a) the data subject has given explicit consent to the processing of those personal data for one or more specific purposes, unless Union or Member State law provides that the prohibition referred to in paragraph 1 may not be lifted by the data subject's consent;

(104) According to Article 58(2)(b), (d), and (i) of the GDPR, the supervisory authority, acting in its corrective capacity:

- b) shall impose an administrative fine on the data controller or processor if their data processing activities have infringed the provisions of this Regulation;
- d) shall instruct the data controller or processor to bring their data processing operations into compliance with the provisions of this Regulation, in a specified manner and within a specified time frame, where appropriate;
- i) shall impose an administrative fine in accordance with Article 83, depending on the circumstances of the case, in addition to or instead of the measures referred to in this paragraph.

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(105) According to Article 83(2) of the GDPR, administrative fines shall be imposed depending on the circumstances of the specific case, alongside or instead of the measures mentioned in Article 58(2)(a)–(h) and (j). In determining whether an administrative fine is necessary and in establishing the amount of the administrative fine, the following shall be duly considered in each case:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purposes of the processing in question, as well as the number of data subjects affected by the infringement and the extent of the damage suffered by them;
- b) whether the infringement was intentional or negligent;
- c) any measures taken by the data controller or processor to mitigate the damage suffered by data subjects;
- d) the degree of responsibility of the data controller or processor, taking into account the technical and organizational measures implemented by them pursuant to Articles 25 and 32;
- e) any relevant previous infringements committed by the data controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate any potentially negative effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) how the supervisory authority became aware of the infringement, in particular, whether the data controller or processor reported the infringement and, if so, how detailed the report was;
- i) if any of the measures mentioned in Article 58(2) have previously been imposed on the data controller or processor in relation to the same subject matter, compliance with those measures;
- j) whether the data controller or processor adhered to approved codes of conduct pursuant to Article 40 or to approved certification mechanisms pursuant to Article 42; and
- k) any other aggravating or mitigating factors relevant to the circumstances of the case, such as financial benefits gained or losses avoided as a direct or indirect consequence of the infringement.

(106) According to Section 75/A of the Infotv., the Authority exercises the powers set out in Articles 83(2)–(6) of the GDPR with regard to the principle of proportionality, particularly by primarily addressing the data controller or processor with a warning in the event of a first-time infringement of the provisions regarding the processing of personal data as defined in legislation or in mandatory legal acts of the European Union, in accordance with Article 58 of the General Data Protection Regulation.

(107) According to Section 61(2) of the Infotv., the Authority may order the publication of its decision - by disclosing the identifying data of the data controller and the data processor - if

- a) the decision affects a wide range of individuals,
- b) it was made in connection with the activities of a public authority, or
- c) the weight of the infringement justifies the publication.

(108) According to Section 10(1) of the Ákr., a client is a natural or legal person, or other organization whose rights or legitimate interests are directly affected by the case, for whom the authority's register contains data, or who has been subjected to official control.

(109) According to Section 60/A(1) of the Infotv., in the data protection authority procedure, the administrative deadline is one hundred and fifty days, which does not include the time from the call for the provision of data necessary for clarifying the facts until its completion.

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(110) According to Section 51(1)(b) of the Act on the General Rules of Administrative Procedures (Ákr.), if the authority exceeds the administrative deadline, it shall pay the applicant client an amount corresponding to the fee payable for the conduct of the procedure or the administrative service fee paid for administrative authority procedures or administrative-type services (hereinafter: fee), and in the absence of this, a sum of ten thousand forints, exempting the applicant from the payment of procedural costs.

III. Decision

III.1. The Data Controller

(111) The contract clearly identifies the data controller with the Applicant (Point E/23), but the Contractor is referred to in the contract as an "office," which is "operated" by the Applicant ("Igazgyöngy Elit Exkluzív Társközvetítő Iroda (operated by: Igazi Társ Kft., ...)"). This is confusing, as the exact meaning does not become clear from the contract. This is further supported by the Applicant's relevant statement, which indicates that the "Office" changed its name from Igazgyöngy Elit Exkluzív Társközvetítő Iroda to Almássy Éva Társközvetítő Iroda, stating that the owner and operator has always been and currently is the Applicant. Despite the office's name referring to a natural person's name "Almássy Éva," the possibility of her acting as a data controller is completely excluded, as detailed in point III.3 of this reasoning.

(112) At the same time, it can be established that alongside Point E/23 of the contract, the data management policy dated July 29, 2020, explicitly names the Applicant as the data controller. The domain user of the websites referenced in point I.2 of this decision is the Applicant. Among these, the information placed on the website <https://www.exkluzivtarskereso.hu> also names the Applicant as the data controller. The Applicant did not dispute its status as a data controller, thus in this procedure, the Authority considers the Applicant to be the data controller.

III.2. The Data Management Information and Its Easy Accessibility (GDPR Article 13, Article 12(1))

(113) In this procedure, the Authority requested the Applicant to present not only the current data management information but also that of the period from June 8, 2019, to June 28, 2019; however, the Applicant did not comply with this request and only submitted the data management policy dated July 29, 2020.

(114) Regarding the Applicant, the aforementioned judgment in paragraphs [17]-[18] also refers only to verbal information (the content related to data transfer was disputed here) in addition to the information provided in the contract. In the protocol recorded under case number (...), the Applicant explicitly stated in response to the court's question that it had not seen any other document or data management information besides the contract. At the same time, the Applicant stated that it had an independent data management information document at the time of the hearing recorded in the protocol (November 24, 2021); however, its statement did not extend to whether it had such a document during the legal relationship with the Applicant.

(115) The only data management policy submitted to the Authority is dated July 29, 2020, based on its content. This is significantly later than the termination date of the contract between the parties, which, according to the Applicant's statement, occurred on June 28, 2019.

15 https://www.exkluzivtarskereso.hu/ma_files/adatkezelesi_tajekoztato.pdf

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The Applicant made this document available in their office based on the statement made to the Authority.

(116) The Authority, when recording the notes related to the websites referenced by the Applicant in point I.2 of this decision (on April 14, 2022), found that this privacy policy was not available anywhere on the websites. On these websites, the only relevant data processing information regarding the service could not be determined in terms of its date of creation and availability, thus it was not verified that the Applicant had access to it during their legal relationship.

(117) Furthermore, neither the latter published document nor the privacy policy sent to the Authority fully complies with the content requirements of Article 13 of the GDPR. For example, the published information lacks details regarding the legal basis for data transfer, the duration of storage of personal data, or, if this is not possible, the criteria for determining this duration, information about the possibility of withdrawing consent, and the legal bases for data processing are listed in the document in a manner that is not clear, and the document only provides an exemplary list regarding the scope of the collected data. The privacy policy does not adequately communicate the scope of the collected data (see paragraph (53) of this reasoning), provides only that such operations occur for "contractual performance," but does not specify the legal basis. It states that the data subject must be informed

before the data processing begins that the data processing is based on consent, and they must be informed of all other relevant facts and their rights; however, this information is not included in the document, nor is the way to access it indicated.

(118) In light of the above, based on the statements made in this procedure, the submitted court documents, and the notes recorded on the questioned websites on April 14, 2022, the Applicant did not demonstrate and did not even suggest that they had an independent, written data processing information document during the period of their legal relationship with the Applicant (from June 8, 2019, to June 28, 2019).

(119) The data processing policy submitted by the Applicant to the Authority on July 29, 2020, is also, based on the Applicant's statement, only available in the office. According to the state recorded on April 14, 2022, the document was also not available on the websites referenced in point I.2 of this decision. Thus, the Applicant could not still easily access it unless they went to the office, which is not realistic under the given circumstances.

(120) The guidelines on transparency adopted by the Data Protection Working Party established under Article 29 of Directive 95/46/EC (hereinafter: Guidelines), in point 11 regarding Article 12 of the GDPR, consider it good practice if the information regarding data processing is available on the website, which was not fulfilled on most websites in this case; where it was available, it was difficult to find the (otherwise content-wise deficient) document.

(121) According to point 8 of the Guidelines, based on the provisions of Article 12 of the GDPR, the requirement for concise, transparent, comprehensible, and easily accessible information also means that the information must be clearly separated from other non-data protection-related information, such as contractual provisions or general information.

16 https://www.exkluzivtarskereso.hu/ma_files/adatkezelesi_tajekoztato.pdf

17 The WP260 rev.01 guidelines are available at the following link:

http://ec.europa.eu/newsroom/article29/item-detail.cfm?item_id=622227; Hungarian version:

https://www.naih.hu/files/wp260rev01_hu.pdf

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terms of use. The method employed to provide data processing information in the contract was therefore inadequate, as the information prepared on this subject must be distinct from other purpose-related documents.

(122) Furthermore, the contract was not fully populated with content as required by Article 13 of the GDPR (for example, information regarding the method of granting consent and the possibility of its withdrawal is missing, retention periods are not specified, the contract lists the legal bases, and does not provide substantive information regarding the involvement of "intermediaries," etc.), meaning that there were both formal and substantive deficiencies in the information provided in the contract.

(123) Based on the above, the Authority found a violation of Article 13 and Article 12(1) of the GDPR and decided in accordance with the provisions set out in Article 58(2)(b) and (d) of the GDPR.

III.3. Transparency of information regarding data processing (Article 12(1) of the GDPR)

"Almássy Éva" involvement

(124) On the questioned websites, the Applicant included several comments, allegedly from former clients, in which they reported on Almássy Éva's pleasant personality and—emphasizing— the effectiveness of her personal involvement. Almássy Éva's photographic presentation was also featured on the questioned websites, highlighting her widely recognized professional experience. The correspondence submitted to the Authority also suggested that the individual actively participates in the processes (her name appeared in the Applicant's email address: "Almássy Éva "; it was also present in her signature panel ("Éva and Tünde"). This was similarly the case in the emails submitted by the Applicant, which were sent to the Requester and her candidates, indicating that the phenomenon is not isolated but systemic.

(125) In contrast, according to the Applicant's statement in the current procedure, "Almássy Éva does not actually participate in the matchmaking, and does not know the members' data."

(126) The personal involvement of "Almássy Éva" is not mentioned in the Requester's contract; however, the signature panels of the correspondence and the marketing information placed on the website suggest personal involvement and even create the impression that "Almássy Éva" plays a significant, important trust role in the provision of the service and the activities of the matchmaking office. In contrast, "Almássy Éva" does not engage in matchmaking (if such a person even exists).

(127) Through this, the Applicant's status as a data controller was not called into question; however, the lack of transparency regarding the information as per Article 12(1) of the GDPR means that the true role of "Almássy Éva" in the data processing was not transparent to the Requester, but rather the Applicant created the appearance of a natural person's data processing activity in a manner that is contrary to reality and misleading.

Transparency of information regarding the method of data transfer

(128) The contract did not clarify which intermediaries could be involved (contract D/20.) and under what conditions (even if, according to the Applicant's statement, the

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In the case of the Applicant, there was no prior notification provided in a verifiable form regarding either their personal situation or in general.

(129) The contract, while not comprehensive and systematic, does specify certain concrete data processing operations (registration and data transmission), but it does not provide adequate insight into these. Thus, in the absence of further information, particularly the data processing operations and procedures related to data transmission are unknown; the contract does not clarify which specific types of data are involved, how the approval of the data provided on the data sheet is separated from the prior consent required for data transmission (D/12), as well as the consent necessary for registration (D/13).

(130) The contract indicates that the Respondent takes into account the needs of the matchmaking partners during the mediation (A/1), but during the mediation, it does not match candidates available in its registry, but rather the candidates closest to them to the contracting partners (A/2, D/10, and D/13). At the same time, any man of any age could be the candidate most suitable for the Applicant's conditions, thus rendering the age difference condition insignificant, and the matchmaking becomes partnerless if the Respondent does not clarify whether a specific requirement in the case of the Applicant is an absolute barrier to data transmission (i.e., one that excludes data transmission altogether). Neither the contract nor the data sheet form document contained transparent information addressing this issue.

(131) The Respondent stated in the contract that it does not inform the Applicant about to whom it has transmitted their data and justified this in the contract by referring to "data processing rules," which were not detailed further (D/12). In the substantive counterclaim submitted in the litigation under case number (...), dated September 30, 2020, it further stated that, in its opinion, it acted according to the Applicant's instructions based on points D/12-13 of the contract and does not need to account for whom it sends the Applicant's data sheet. However, according to the statement of the Respondent recorded in the protocol under case number (...), some clients request to be notified about the transmission of their data sheet in order to know who will contact them. Additionally, the Respondent also made a statement before the Authority indicating that the Applicant did not receive information regarding data transmissions related to them because they did not request it. This contradicts the fact that the Applicant sent an email to the Respondent, part of which was precisely about the lack of visibility regarding who and how many received their data sheet. In this regard, the information provided is not only non-transparent but is explicitly contrary to other statements.

(132) Regarding confidentiality discretion, the Respondent made vague promises: the content of the discretion promised on the website is unclear, and the contractual provision regarding confidentiality is

also not clear; the interpretation of this by the Respondent in this administrative procedure (confidentiality only applies to verbal conversations at the time of contract conclusion) cannot be derived from the wording of the contract.

(133) The nature of the service implies that even in the complete absence of information, some degree of data transmission can and must be expected. Correspondence and statements made during legal proceedings show that the Applicant was completely unprepared for data transmission, but the fact that the Applicant should have expected some data transmission through data processing operations based on "common sense" does not override the Respondent's data controller obligations.

(134) It was the Respondent's objective obligation to provide transparent information regarding the circumstances of data transmission to the Applicant.

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Due to the nature of the service – not as an ancillary issue, but as one of the central obligations closely related to the service.

Transparency regarding the legal basis for data transfer

(135) The Applicant explicitly objected in their application that the Respondent transmitted their personal data to third parties without their consent.

(136) The Respondent stated in court documents and in their declarations made during the current proceedings that, in their opinion, the Applicant had given their consent to the data transfer multiple times, both in the contract and verbally, and subsequently via email. However, in light of the joint interpretation of points D/12 and E/30-E/31 of the contract, the Respondent's information regarding the legal basis for consent to the data transfer was not transparent. While point D/12 explicitly assigns a consent-based legal basis for the data transfer, points E/30-31 relativize this by listing the legal bases in a "bulk" manner and by stating the necessity of the data for the performance of the contract.

(137) Furthermore, since the data transfer is inherently related to the essence of the service and, consequently, to the fulfillment of the contract, the consent cannot serve as an appropriate legal basis for such data processing.

(138) The granting of consent must be as easily revocable as it was given; this cannot be fulfilled in this case, as it was not provided in the present instance. In the event of revocation, a problem arises that if there is no consent – and there is no other legal basis either – then the data processing cannot continue lawfully due to the lack of a legal basis. This cannot be interpreted or considered realistic in light of the nature of the service (cf. for example, how can the revocation of consent be maintained in conjunction with data transfers that have already been completed). It is not apparent that the Respondent was prepared for this (although they claim to have been prepared for a consent-based legal basis).

(139) In the specific situation, the Respondent did not consistently apply their own logic in other respects:

(140) The points of the contract (D/12-D/13) assign a consent-based legal basis for both registration, approval of data, and data transfer.

(141) It has not been substantiated where the Applicant provided these consents: the consent given upon signing the contract is not supported, and this is not a lawful method of collecting declarations; the consent given by accepting the submitted data processing policy cannot be substantiated either, as it did not even exist at the time of the Applicant's legal relationship (furthermore, interpreting its "acceptance" as a kind of independent consent is also erroneous). There is no panel requesting consent or relevant information on the form document, thus filling it out cannot be interpreted as a clear declaration of consent. According to the Respondent's statement, they interpreted the approval of the data sheet sent to the Applicant via email as a form of consent, however, it has not been substantiated that the Applicant had visibility on this, and it was evidently disputed between the parties what effect should be attributed to the email confirmation of the data sheet (according to their statement, the

Applicant expected that their data sheet in the registry had been modified, while the Respondent, based on their statement, considered it as the approval of the data for the data transfer).

(142) The data sheet also collects special data (religion), for which stricter conditions (explicit consent) are in effect, while the basic conditions for consent are...

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are not fulfilled. The form document does not contain information or details regarding the processing of special data, there is no declaration panel on it, and the informed consent does not arise based on the above.

(143) According to Article 4(11) of the GDPR, "the consent of the data subject" is the voluntary, specific, informed, and unambiguous indication of the data subject's wishes, by which the data subject signifies agreement to the processing of personal data relating to them, through a statement or a clear affirmative action. Article 7 of the GDPR details the conditions for consent, highlighting, among other things, the obligation of the data controller to document the consent given, to collect the consent declaration separately from other matters, and to ensure that the given declaration can be withdrawn. Article 9 of the GDPR further provides for the prohibition of processing special data, which may be exempted under certain conditions by explicit consent from the data subject for the processing of such data.

(144) The guidelines on consent adopted by the Data Protection Working Party established under Article 29 of Directive 95/46/EC, which facilitate the application and interpretation of the GDPR, provide a detailed overview of the various substantive elements of consent and the relevant requirements. As part of this, the guidelines on consent highlight, among other things, that the fourth paragraph of Article 7 of the GDPR states that it is considered particularly undesirable for consent to be "tied" to the acceptance of contractual terms; the data controller must also ensure that consent cannot be obtained through the same action as consent to a contract; and if a data controller seeks to process personal data that is actually necessary for the performance of a contract, consent is not the appropriate legal basis.

(145) Consent must be explicit in the case of special data, where an obvious – though not exclusive – option is to obtain a written consent declaration (see the details in point 4 of the guidelines on consent); however, it must be emphasized that the data controller bears an increased burden of proof regarding the provision of the relevant consent declaration, as in the absence of such, they have no legal basis for processing the special data, while the processing of such data is generally prohibited.

(146) The Applicant did not document the consents either in the contract, in the data sheet, in emails, or in any other verifiable manner:

The declaration must be provided separately; the signing of the contract cannot be considered a consent declaration, as it is not separate from the contractual declaration.

It is also stated in the data processing policy that by "accepting" it, the customer gives consent. If the Applicant intended to apply this document in a way that affects the Applicant, it would have been necessary to ensure the conditions for this (accessibility of the document, obtaining the consent declaration with prior information, possibility of withdrawing consent).

Based on the statement made in the administrative procedure, the Applicant also considered the email approval of the data sheet as a kind of consent declaration, while the Applicant was not clearly informed about this; it could not be clear to them that the response email was a consent declaration, nor that the approval related to the modification of the record or the forwarding of the modified data sheet.

The mere completion of the data sheet does not imply, based solely on the form, that its completion can also be interpreted as consent given for any data processing.

18 https://naih.hu/files/wp259-rev-0_1_HU.PDF

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The consent, as a declaration, was therefore not clearly separated from other declarations and was not

explicitly given.

(147) Based on all of the above, if consent had been the applicable legal basis, then the Applicant would not have complied with Article 6(1) of the GDPR, as it would not be able to prove the existence of consent and thus would not have a proper legal basis for data processing. However, since there was, in principle, a legally applicable legal basis (according to Article 6(1)(b) of the GDPR, the performance of a contract) derived from the regulation and the available information, and the Applicant did not base its data processing on this, the Authority did not find a violation of Article 6(1) of the GDPR in this case.

(148) The details outlined in this section III.3 resulted in a violation of the transparency of the Applicant's information according to Article 12(1) of the GDPR, and additionally, the principle of accountability (Article 5(2) of the GDPR) was also violated: the Applicant created an ambiguous situation, thus unable to prove the legality of its data processing, as it cannot substantiate that the actual practice corresponds to the information it provided.

(149) Based on the above, the Authority established a violation of Article 12(1) of the GDPR and Article 5(2) of the GDPR and decided according to the provisions set out in Article 58(2)(b) and (d) of the GDPR.

III.4. Data transfer without legal basis (Article 9(2) of the GDPR)

(150) The Applicant stated in its application that, in its opinion, data transfer occurred even after the termination of the contract on June 28, 2019, specifically on July 1, 2019. The third transfer occurred on July 1, 2019, based on the submitted judgment [8] and [17].

(151) The Authority established that June 28, 2019, fell on a Friday, and July 1, 2019, was the following Monday, a working day after the termination of the contract. Given the termination of the contract on Friday, there was no lawful basis for the performance of the contract on the following working day for the third transfer; however, the Authority took into account that the data transfer occurred during the administrative processing of the termination, thus it was essentially the same as previous data transfers, and therefore the Authority does not find it justified to establish an independent violation in this regard.

(152) Regarding religious data as special data, there was no appropriate, lawful basis for data processing, as the Applicant did not provide explicit consent for the processing and transfer of this data, and the Applicant did not substantiate any other lawful basis for this.

(153) Based on the above, the Authority established a violation of Article 9(2) of the GDPR concerning the processing of special data (religion) and decided according to the provisions set out in Article 58(2)(b) and (d) of the GDPR.

III.5. Fine and publication

(154) The Authority examined ex officio whether it was justified to impose a data protection fine against the Applicant. In this context, the Authority considered all circumstances of the case based on Article 83(2) of the GDPR and Section 75/A of the Infotv. and established that the proceedings had been prolonged over time; therefore, based on Article 58(2)(i) of the GDPR, it did not decide to impose a fine as set out in the operative part.

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(155) For the purposes of general and special prevention, the Authority shall publish the decision in question with the identifying data of the Applicant in accordance with Section 61(2) of the Infotv., particularly considering the severity of the infringement. The infringement is serious because the information and transparency suffer from several significant errors during an activity that is highly trust-based: the recipients of the service are individuals who wish to meet unknown persons for sensitive purposes.

V. Other Issues

(156) V.1. The Authority has exceeded the one hundred and fifty-day administrative deadline set forth in Section 60/A(1) of the Infotv. during the procedure; therefore, based on Section 51(1)(b) of the Ákr., the Applicant is entitled to ten thousand forints – at their choice – by bank transfer or postal voucher.

(157) V.2. The present decision of the Authority is based on Sections 80-81 of the Ákr. The decision becomes final upon its communication in accordance with Section 82(1) of the Ákr. Pursuant to Section 112 and Section 116(1), as well as Section 114(1) of the Ákr., there is a right to legal remedy against the decision through administrative litigation.

* * *

(158) The rules of administrative litigation are determined by Act I of 2017 on Administrative Litigation (hereinafter: Kp.). According to Section 12(1) of the Kp., administrative litigation against the Authority's decision falls under the jurisdiction of the court, and based on Section 13(3)(a)(aa) of the Kp., the Metropolitan Court is exclusively competent for the case. According to Section 27(1)(b) of the Kp., legal representation is mandatory in cases falling under the jurisdiction of the court. According to Section 39(6) of the Kp., unless otherwise provided by law, the submission of the statement of claim does not have a suspensive effect on the validity of the administrative act.

(159) Section 29(1) of the Kp. and, in this regard, Section 604 of Act CXXX of 2016 on Civil Procedure (hereinafter: Pp.) is applicable, and according to Section 9(1)(b) of Act CCXXII of 2015 on Electronic Administration and Trust Services (hereinafter: E-ügyintézési tv.), the client's legal representative is obliged to maintain electronic communication.

(160) The time and place for submitting the statement of claim are determined by Section 39(1) of the Kp. Information on simplified proceedings is based on Sections 77(1)-(2) and Section 124(1) and (2)(c) and (5) of the Kp. The amount of the administrative litigation fee is determined by Section 45/A(1) of Act XCIII of 1990 on Fees (hereinafter: Itv.). The Itv. exempts the initiating party from the advance payment of the fee under Section 59(1) and Section 62(1)(h).

(161) According to Article 57(1)(a) of the GDPR, it is the task of the national data protection authorities to monitor and enforce the application of the GDPR.

(162) Based on Sections 38(2)-(2a) of the Infotv., it is the Authority's duty to ensure and promote the enforcement of the right to the protection of personal data, as well as the right to access public interest and publicly accessible data, and to facilitate the free flow of personal data within the European Union. The tasks and powers assigned to the supervisory authority in the General Data Protection Regulation are exercised by the Authority in accordance with the provisions set forth in the General Data Protection Regulation and the Infotv. concerning entities under the jurisdiction of Hungary.

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The Authority's jurisdiction extends across the entire territory of the country.

Dated: Budapest, according to the electronic signature

Dr. habil. Attila Péterfalvi

President

University Professor